

Aruna Raval vs Dr.Prithvi Raval S/O Lt Dr R S ... on 15 April, 2010

Bench: N.Kumar, K.Govindarajulu

Miscellaneous First Appeal Nos.52 151/ and.,
7529/2009 are filed under Section 19(1) of the Hindu Marriage Act, 1955 read with Section 28 of the Hindu Marriage Act, 1955 against the judgment and decree dated 14.7.6.2009.

in M.C.No.2004/2004 on the file :_of the _11I _Additional

Principal Judge, Family Court, Bangalore.1;allowing the
petition filed under Section 13(1)(i) of the

Hindu Marriage Act, etc.

Misc.Cvl.No.235.-2009 is filed under Section 24 of
the Hindu Marriage Act read with Section 151 of CPC
praying to grant an order of 'maintenance' of Rs.50,000/-
Per month, etc.

is filed under Section 5 of
the Limitation Act, 1963. The delay in filing
the appeals, " , ' , * '

These _ First Appeals and
Misc.Cvl.Nos.28545/2009 and 19175/ 2009 coming on for
Final. 'Hearing. this day, N.KUMAR. J., delivered the

. p'v follow 5 'i, ng_i' _ _ _ _ _ ..

JUDGMENT

A appeals arise out of a common judgment decree in O.S. No.2004/2004. Therefore, they are up together and disposed of by this common judgment.

2. For the purpose of convenience, the parties are referred to as they are referred in the original suit.

3. Smt. Aruna Raval filed M.C.No.2004/2004 against her husband Dr. Prithvi Raval for dissolution of marriage and for a declaration that she is entitled to a proportionate share in Schedule I property and for other reliefs before the Family Court at Bangalore.

4. Her case was that she _from a respectable family and her father was a Senior Officer in Government of India. World Bank at Washington subsequently, he became an Adviser in the Petitioner was pursuing her bachelor's degree in the American University in QC. Petitioner and her parents visited India during 1972 on home leave. In August, 1972; met the respondent's father Sri L. S. E. Admanabhan and his family members including the _yiy". respondent

through a common friend. At that point of " time, the respondent was studying for BDS in Manipal. In A July 1973. Dr.R.S.Padmanabhan visited United States of America to find out a suitable University where his son, E□/. ..

the respondent, could pursue his higher studies) time, he Visited the parents of the petitioner?"

an admission to the Temple University in: x'AtVl that stage, an idea of alliance the respondent was mootedvbltzigilsomeh"common who were then in USA. vDr.l.Padpni'ai'iahli'an's f;ami1y's favoured such alliance. V"_petitioner's father conveyed petitioner and respondenti-rf1g;.,_§'g.d;\._V marriage. The marriage was p:..é%rforrnedp--.g wso1..e_rn_n_ised at Kamadenu Hotel, Bangalorepasp on 12.6.1974. The reception was arrvanged in _tlile 'l°lsl1oka' Hotel, a five star hotel on a 'Shortly after the marriage, the petitioner's and the petitioner lived at the home of _Dr.Padmanat311an's family at No.28. Vani Vilas Road, Bianegalorel until she and the respondent went to USA at 'end of August, 1974, where the respondent had ffseciired admission at the Temple University in it Philadelphia. Petitioners parents found the accommodation for the couple and made all arrangements for their stay in Philadelphia to be comfortable.Wl3etit'ioner's parents also gave a second hand Plymouth their use. They □anced for the mairitenalnce if of the two and aiso visited them the fees for the first year of the' respondent, the fees, forfthe'. ye.§r'anti all other expenses were borne father. About twenty thousand: the petitioners father on the period of 1976 to 1983, two chiid'i_'»en TwereDborn__ to them.

5. Soonafter r.f1ai'riage, the petitioner was taunted _lres,pondVent-----«and his family members for not culture. It hurt the petitioner as she was humiliated and ridiculed on every issue. respondent and his family members also used to "ma.kge""g_«adverse comments about the petitioner's parents

--.'jariE:1 their upbringing of the petitioner for no Valid reason. l."The respondent used to find fault with everything the petitioner did, even trivial matters. She was always said to be wrong. One of the criticisms was that the does not know the 'right way to eat an appl---:3'; the food to taste and be exactly the' v'J?1.Y it. Even a slight variation was to severe criticism. In the a graphic of V such insult has been set._out;"" *

6. The respondents«:lay:'toVdayy_tlehavioiir at home has been the canse. stress. Everything has to go ac.cording'lt;01i:§hiis without any regard to the vievvs or others and the feeling of a family ~__harr11ony and living with mutual _accorr}rriocia.tion ar1d--.----fr'iendliness has been totally lacking. lflgt "vQr1l_\:_fl 'personal convenience and comfort that togther-espondent and one must satisfy his whims. mostlldays. he comes home late at night. He does not disclose where he would go when he is so late. He K iris rude when questioned about it. He has taken practically lino interest in the upbringing and education of the children and left it to the petitioner who had to shoulder k/,, all the responsibility. The only thing he did was at the children and petitioner for any Continued use of abusive andfinsulting words against petitioner has caused rnentaIW__ agony. 'v_--Rgespon'dent*s,V demeanor and his ways terrorized the and they kept mostly away 'behind the

petitioner who had to at the same time handle the 'situation' of stress. The respondent has harassed the petitioner in this matter and which have caused enormous stress to the petitioner. A couple of instances of bad behaviour with the children have been put out in the petition.

7. Financial matters have been another tension and source of anxiety for the petitioner. The respondent gave a monthly allowance to the petitioner for running the house barely in

---: keeping with the minimum needed. Even this was given grudgingly. The respondent told the petitioner on several occasions that she and the children were leeches feeding

13. The petitioner submits that she has been suffering enormous mental cruelty and harassment and verbal abuse from the respondent for many years and it ..

more. It has not been a marriage of...life. and the respondent has consistently tried to treat the petitioner as a master servant type of relationship. The petitioner made efforts to make some adjustments around the respondent to a more equitable and type of relationship, but the respondent's efforts have failed on account of the arrogant and selfish attitude of the respondent. "The is anything but cordial. The petitioner has been subjected to repeated abuse, exploitation and mental cruelty.

up, the petitioner submits that the respondent has treated the petitioner with extreme cruelty by treating her, by having inappropriate relationship with several other women, other than the petitioner because of which, the petitioner suffered both mental pain and suffering. It is not possible for the petitioner to live with the husband anymore. Therefore, the petitioner has approached this Court seeking relief of marriage.

15. She further contends that the respondent purchased by the respondent's wife made available to him a sum of Rs.8,75,000/- as made by her for purchase of the said constructed on the said site. The respondent borrowed money from any Bank for the purchase of the said property. The petitioner provided to the respondent a sum of Rs.53,844/- from herself and a sum of lakhs obtained from her parents of the house. All these payments are made in the name of the respondent or to the respondent. The petitioner and her parents did not insist that the property being purchased in the name of the petitioner. The respondent and her parents believed at that time that the respondent being the husband of the petitioner would behave properly in future and the respondent's declaration that she is entitled to a proportionate share in the schedule property commensurate with the funds to the extent of Rs.15.89 lakhs out of the respondent's funds at that time and direct the respondent to register a document conveying such portion to the petitioner and her heirs.

17. It is submitted that she resided in the property till this date. The respondent is still staying in her parents' house and has threatened violence in the matrimonial home. Therefore, she sought a decree of dissolution of marriage and the respondent's right to Schedule I property. Schedule II property are all moveable properties. After giving notice, the respondent entered the respondent's appearance and has filed detailed statement of objections the

allegations made in the petition. He admits marriage and that the marriage has been consummated and out of the marriage, a son and a daughter are born. The daughter is married and settled by the petitioner's father. The respondent has always recognised the talents and desires of the petitioner and allowed her to study and prosecute her and even allowed the petitioner to pursue music. The respondent would always discuss the issues with the petitioner before decision and more often than not the decisions were taken in the best interest of the petitioner. The respondent had not put in any restrictions on the movement and utilisation of the petitioner and she had all the liberties and her social activities and the petitioner and the respondent both hailing from a highly educated parents. The respondent always encouraged the petitioner to manage herself and time keeping in view of the fact that the matrimonial duties and obligations towards their family should not be sideline.

The respondent's parents always showed love and affection towards the petitioner and the children. In fact, the respondent and his parents were always very understanding and accommodative knowing fully well that their education, the way money was spent in running the family affairs etc. Therefore, the respondent submits that there is no merit in any of the allegations made by the petitioner against him.

23. In so far as the acquisition of property of the respondent concerned, it is submitted respondent he was intending to acquire a house and in the meanwhile the petitioner only proposed to acquire the house, even though the petitioner was the father that the respondent had to plan his finances to acquire a house. The respondent a suitable site and in the course of arranging for the purchase of the property the petitioner had volunteered to offer fund; though the respondent was not inclined to accept the same. The respondent insisted after such persuasion by the father of the petitioner to make the payment by cheque and accordingly the payments from the father of the petitioner were received by cheques. The respondent had the capacity to mobilize the resources and the respondent for the fear of the petitioner being "into the American way of life and now that the petitioner is married and the son is growing; the petitioner probably made up her mind marriage between the petitioner and the respondent could have her own way. The exclusion of the respondent and to petitioner has adopted Hindu law.

32. That though there were parties at the instance of Well-wishers, the petitioner had voluntarily left the matrimonial home by affixing a note on the main door and of house keys without the knowledge of the respondent. The act of the petitioner clearly demonstrates that the petitioner was upon precipitating legal proceedings and had no regard for the reconciliation process which was initiated and the respondent has been constrained to file detailed evidence on record and therefore on that ground, the family court could not have granted a decree.

41. In so far as the right to property is stated in Section 27 of the Act is attracted property presented at the time of the marriage.

instant case, the financials by the father of the petitioner for the nearly 14 years after the marriage is not attracted. given by the respondent is in the nature of a loan. respondent has he paid one instalment, repaying the loan. It is because

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dissolution of the

bl' of the Hindu Marriage "Act attxfacted to Scheduled' property, so as'-to grant relief to the petitionenwife? ll of the family court. in the impugned judg_me_nt,_vlhals clearly set out the evidence of each of the l on the question of cruelty. He has also referred pleadings exhaustively. The materials on record ~~elear1y establish that both the parties are coming from respectable, highly educated, culturally advanced families. The petitioner's father held high positions in India. In the \t// course of his employment, he was stationed in is how his daughter was educated in USA. were clear in their mind that their»and."theirldaughterrfsitr place is in India and not in Amerizea.

"The" marriage was conducted in a manner commensurate it the standing of both the parties. There is absoluteiy no quarrel on these aspects.

respondent was brought up in Indian from a traditionaily orthodox farnilyj' the pdeitvioiiierdwas mt" ' able to understand the ethosof v _ ,

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It is also VV'b; jought_aon_ that after return from USA, 'in....the house belonging to father of the was not sufficient to meet their requirements' it Leaving margin for exaggeration on either side, one if is certain that there were difficulty for both of them adjusting to the other. Probably because of the birth of two children and their responsibility of bringing them up, both of them appear to have tolerated the other, but the V, suppressed feelings have come out after the responsibility of marrying the daughter was over. 1"

record discloses that the respondent---witness 1; t, VhE: l 9 j was working in the midst of worn'eni'--and when he then for some good work, l'thie'ygdid. V.n.3..t' the petitioner. The respondent, Aad1:n_i'tslj that heliasl taken an active part in were sent out side the cou11\$tpf, }:.£V.gt_'11d selection of a Oral evidence of the petitioner_i_.a_ndlvhis friend, even though cannot libel talker; truth, but it shows some connection between the respondent and the said lady. l: There be a smoke without a fire! All these admitted by the respondent, he has _ given oxvn expianation.

it it In the nature of the present case, it is not possible to .l the parties to produce clinching evidence to prove "the allegations made against each other. The petitioner has not only given her own evidence, but got examined her xx/s other. It may be intentional or unintentional. The cruelty may be mental or physical.

if it is physical, the Court will hai2e_l4'no'~l., " ~V.. 3 problem to determine. It is a ques-tion A't'gff-- 'V' ' fact and degree. The nature of ii; iVur'i.es inflicted, the extent of. .physical"

used, the time and place' .oj7_iri1j□c_tEng.____""l injuries, the part of the body llaffecteyqy, medical records yshowirrg the treatment "

given, the money___o'spent""o,n Vtreatm_ent,~ eye witness if any the cause lfor such assault, would an insig.ht/I to determine' phys.ical. __cruelty pleaded as a ground' of di'uo,rce. '1"he.,C'o.urt would be justified in insisting on ,sorne" evidence as a v-.pro~.j_3f yof; ph"y,s:'c_al "cruelty and therer_§j'te:'v to proceed. "to"" assess to the ;'evidence. __to o._j"ind.ing of cruelty.

-. _thelc.ldse pleaded is of mental crue,l_ty, the problem presents difficulty. ., __Mental~---cruelty is a conduct which one _party in□cts upon the other party, such " .rmental pain and suffering as would ""~...,rrl..(1,'h'e it not possible for the party to live .l'i'tiith the other. First the enquiry must "begin as to the nature of cruel conduct complained of. Secondly, the impact of such conduct on the mind of the other spouse. In trying to find out the impact of such conduct, one should have knowledge and intention of the spouses, their character and physical and mental weakness. It is also necessary to have a fair knowledge of the setting in which they are living. The type of l□ the parties are accustomed to or their \ / _ the husband in unequivocal terms in the pleadings : 'a.s'we11 as in the evidence has stated he stayed in place and the conduct of his wife ihasp and' probably they have reached a point the

husband says that he is living for the satisfaction of living together, it is only for him. For instance, the respondent owns a tophim, it is kept in two parts, therefore, it has not been used since that the husband is adamant type of the very fact he owns a pistol itself causes fears to her children. If the husband requires her and children to live with him and for if he has not used the pistol, the best course up that pistol, if restoration of family ties is of utmost importance to him. He is not willing to do the wife wants to assert his rights to own a pistol, which

-- of no use for the past 30 years. The two parts of the "pistol is kept in two portions, this indicates the mental attitude of the husband. The second aspect which has come in the way of this couple is the husband's activities the suit property would not fall within Section 27. A reading of Section 27 in the context introduced in the Hindu Marriage Act makes it very clear that if a decree is for a property to be passed all the advantages that the husband has acquired out of that marriage should be restored back to the wife. "The property made have been provided" before of marriage or after the marriage is not defined under or mother-in-law gives property to the wife of the marriage with their daughter. The inference could be drawn is that if there is no intention to recall or take it back or no intention on the part of son-in-law to pay back, then once it is pleaded that it is loan, he has prove that it is repaid and it is not right to plead that the claim is barred by limitation. Such plea of loan set up by the husband fails when the relationship is admitted. and the father-in-law has been supportive from the date of marriage, as and when occasion arose, so also when the